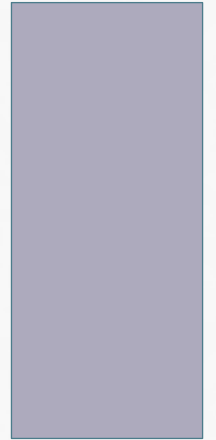


CHAPTER V POLITICAL AND SECURITY FUNCTIONS OF INTERNATIONAL ORGANIZATIONS



POLITICAL AND SECURITY FUNCTIONS OF INTERNATIONAL ORGANIZATIONS

- • Dispute-settlement function
- • Peace-keeping function
- • Security function

SECTION ONE THE DISPUTE-SETTLEMENT
FUNCTION OF INTERNATIONAL
ORGANIZATIONS

I. TYPES AND CHARACTERISTICS OF INTERNATIONAL DISPUTE SETTLEMENT BY INTERNATIONAL ORGANIZATIONS

Grounded in legitimacy and emphasizing multilateralism and coordination, international organizations serve as effective platforms and instruments for the peaceful settlement of international disputes.

International disputes are mainly classified as:

- legal disputes
- political disputes

Settlement is pursued primarily through the United Nations framework and regional organizations.

(I) SETTLEMENT OF INTERNATIONAL DISPUTES WITHIN THE UNITED NATIONS FRAMEWORK

- • Peaceful settlement mechanisms: the preferred option, comprising political settlement and judicial settlement.
- • Coercive mechanisms: sanctions and the use of force.
- *To take effective collective measures for the prevention and removal of threats to peace, and for the suppression of acts of aggression or other breaches of peace; and to bring about by peaceful means, and in conformity with the principles of justice and international law, adjustment or settlement of international disputes or situations which might lead to a breach of peace.*
- — Paragraph 1, Article 1, Charter of the United Nations

(II) SETTLEMENT OF INTERNATIONAL DISPUTES THROUGH REGIONAL ORGANIZATIONS OR REGIONAL ARRANGEMENTS

- Chapter VIII of the United Nations Charter establishes the formal status of regional organizations in the settlement of international disputes.
- Article 52: *Nothing in the present Charter precludes the existence of regional arrangements or agencies for dealing with such matters relating to the maintenance of international peace and security as are appropriate for regional action provided that such arrangements or agencies and their activities are consistent with the Purposes and Principles of the United Nations.*
- Principal advantages of regional international organizations in settling international disputes (3)
- Principal characteristics of regional international organizations in settling international disputes (2)

II. POLITICAL MEANS OF DISPUTE SETTLEMENT EMPLOYED BY INTERNATIONAL ORGANIZATIONS

- Negotiation and consultation
- Good offices and mediation
- Inquiry and conciliation

(I) NEGOTIATION AND CONSULTATION

- Negotiation and consultation refer to direct dialogue between the parties to a dispute aimed at resolving it. The parties set out their respective positions and views, clarify the facts, seek mutual understanding, remove misunderstandings and differences, make concessions and compromises, and enhance mutual confidence so as to arrive at a solution acceptable to all.
- Possible outcomes of negotiation and consultation:
 - - One party yields, wholly abandons its own claims or demands, and accepts the views, claims or demands of the other party;
 - - Both parties compromise and make concessions, thereby finding a mutually acceptable way to settle the dispute;
 - - All parties adhere to their original positions and refuse to yield, causing the negotiations to break down and compelling recourse to other means of settlement.

(II) GOOD OFFICES AND MEDIATION

Good offices refers to the act whereby, when the parties to a dispute are unable to resolve it directly, a third party facilitates and encourages them to come to the negotiating table so that the dispute may be settled peacefully.

Mediation refers to the process whereby, when the parties cannot resolve the dispute through direct negotiation and consultation, a third party intervenes to reconcile their respective demands.

The principal distinction between good offices and mediation lies in whether the third party takes direct part in the negotiations.

(III) INQUIRY AND CONCILIATION

Inquiry (or fact-finding) refers to a procedure used in international disputes where the parties disagree on questions of fact. The parties agree to employ an agreed method to investigate the contested facts, determine whether any breach of a treaty or other international commitment has occurred, and propose appropriate remedial measures for adjustment.

Conciliation (or mediation) refers to a procedure whereby the parties to a dispute, by treaty or other arrangement, submit their disagreement to a commission composed of several persons. The commission investigates and assesses the facts of the dispute, clarifies them for the parties, hears their views, and makes efforts to assist them in reaching agreement. Upon completion, it issues a report that includes recommendations and proposed avenues for resolving the dispute.

III. LEGAL MEANS OF DISPUTE SETTLEMENT BY INTERNATIONAL ORGANIZATIONS

International arbitral and judicial bodies of international organizations resolve or adjudicate international disputes in accordance with international legal rules.

- International arbitration
- Judicial settlement

(I) INTERNATIONAL ARBITRATION

International arbitration is a method of dispute settlement in which the parties jointly agree to submit their dispute to arbitrators of their own choice and undertake to abide by the ensuing award.

International arbitration is characterized by “voluntary jurisdiction.”

An international arbitral award is legally binding on the parties to the dispute.

(II) JUDICIAL SETTLEMENT

Judicial settlement is a procedure whereby the parties to a dispute submit it to a pre-existing international body—such as an international court or tribunal composed of independent judges—which renders a legally binding decision on the dispute referred to it by mutual agreement of the parties, in accordance with international law.

Global judicial institutions:

- International Court of Justice
- Permanent Court of Arbitration
- International Tribunal for the Law of the Sea

Specialized or regional judicial institutions:

- Court of Justice of the European Union
- Inter-American Court of Human Rights
- European Court of Human Rights

IV. COERCIVE MEASURES FOR INTERNATIONAL DISPUTE SETTLEMENT BY INTERNATIONAL ORGANIZATIONS

- The United Nations Security Council is the only organ of an international organization empowered to take compulsory action.
- Sanctions
- Use of force

(I) SANCTIONS

Sanctions mainly comprise measures such as economic sanctions, financial sanctions, arms embargoes, travel bans, asset freezes, and other restrictive steps.

The purpose of sanctions is to alter the policy conduct of the target or to convey a specific message from the sanctioning party to the target.

(II) USE OF FORCE

- Chapter VII of the United Nations Charter empowers the Security Council to take enforcement action when there are threats to, or breaches of, international peace and security.
- Forms of force employed by international organizations:
 - (1) Peace-keeping intervention, aimed primarily at halting conflict and securing a cease-fire between the parties; such peace-keeping operations must remain impartial.
 - (2) Authorization by the UN Security Council for third-party military forces to intervene directly.

SECTION TWO PEACE-KEEPING FUNCTIONS OF INTERNATIONAL ORGANIZATIONS

PEACE-KEEPING OPERATIONS

The “maintenance of peace and operations” (peace-keeping operations) undertaken by international organizations are the most conspicuous innovations carried out by organizations such as the United Nations to preserve international peace and security.

United Nations peace-keeping began in 1948; by 31 December 2017 a total of 71 operations had been launched, of which 15 were still underway.

The basic principles of UN peace-keeping are: consent of the parties, impartiality, and non-use of force except in self-defence.

I. EVOLUTION OF PEACE-KEEPING OPERATIONS

- On 29 May 1948 the UN Security Council adopted Resolution 50 (1948), establishing the United Nations Truce Supervision Organization in Palestine—the first peace-keeping operation ever deployed by the United Nations.
- Three stages of UN peace-keeping:
 - First-generation operations during the Cold War
 - Second-generation operations after the end of the Cold War
 - Third-generation operations since the beginning of the 21st century

(I) FIRST-GENERATION TRADITIONAL PEACE-KEEPING OPERATIONS

- Guiding concepts: “preventive diplomacy” and the three peace-keeping principles
- Main tasks: to address regional conflicts that might threaten international peace and security, or “power vacuums created by the process of decolonization,” acting as an “impartial and objective third party” to help calm the conflict and create conditions for restoring peace.
- Hammarskjöld’s three principles:
 - peace-keeping operations may be deployed only with the consent of the main parties to the conflict;
 - peace-keepers must remain neutral;
 - and they may use force only in self-defence or to carry out their mandate.

(II) SECOND-GENERATION MULTI-DIMENSIONAL PEACEKEEPING OPERATIONS

- Conceptual basis: Boutros-Ghali's 1992 “Agenda for Peace”
- “Peace operations”: peacemaking, peacekeeping, and peace-building
- 1992–1995 Somalia peacekeeping operation suffered setbacks and failure.

(III) THIRD-GENERATION GOVERNANCE-ORIENTED PEACEKEEPING OPERATIONS

- Peacekeeping operations have become more rational overall, shifting from “enforcement of peace” back to “peacekeeping” and avoiding coercive measures whenever possible.
- The 2005 Brahimi Report outlined four key components of “peace operations”: preventive diplomacy, peacemaking, peacekeeping, and post-conflict peacebuilding.
- The 2015 HIPPO (High-Level Independent Panel on Peace Operations) Report proposed reforms centered on political solutions, a people-centric approach, and partnerships.
- Transformation of peacekeeping:
 - From operations to governance
 - From government to people, or from state to local level
 - From reacting to conflicts to preventing them
 - Toward achieving sustainable peace

II. CHARACTERISTICS OF PEACE-KEEPING OPERATIONS

1. The content and scope of international peace-keeping have expanded, shifting from simple “peace-keeping” to post-conflict peace-building.
2. The “coercive” element of peace-keeping operations has steadily increased.
3. United Nations peace-keeping has become more pluralistic and multi-dimensional.

III. INNOVATIONS IN PEACE-KEEPING OPERATIONS

Innovation in peace-keeping concepts and principles: emphasis on impartiality and robust self-defence.

Innovation in peace-keeping mechanisms: peace-keeping standby arrangements and the Peace-building Commission.

Capacity-building for peace-keeping operations: strengthened cooperation with regional international organizations.

SECTION THREE
SECURITY FUNCTIONS OF INTERNATIONAL
ORGANIZATIONS

I. PREVENTION OF THE PROLIFERATION OF WEAPONS OF MASS DESTRUCTION

1. Treaty on the Non-Proliferation of Nuclear Weapons (NPT)
2. - International Atomic Energy Agency (IAEA)
3. - Organisation for the Prohibition of Chemical Weapons (OPCW)
4. - Establishment of nuclear-weapon-free zones
5. - Comprehensive Nuclear-Test-Ban Treaty (CTBT)

(I) TREATY ON THE NON-PROLIFERATION OF NUCLEAR WEAPONS (NPT)

The NPT is the cornerstone and core of the international non-proliferation regime.

Three pillars:

- nuclear non-proliferation
- nuclear disarmament
- peaceful uses of nuclear energy

Positive effects:

- nuclear proliferation has been curbed to a certain extent
- seven regions of the world have been declared nuclear-weapon-free zones

Main challenges:

- nuclear strategies and policies of major powers
- regional security dilemmas
- proliferation by non-state actors

(II) INTERNATIONAL ATOMIC ENERGY AGENCY (IAEA)

The IAEA was formally established in October 1957 and is headquartered in Vienna.

Three pillars (areas of work):

- Safety
- Science and technology
- Safeguards and verification

Main activities:

- providing technical assistance to member states
- concluding safeguards agreements and applying safeguards to relevant projects
- organizing the development of safety regulations for the use of nuclear energy
- sponsoring research, conferences, and information exchanges on the peaceful uses of atomic energy

(III) ORGANISATION FOR THE PROHIBITION OF CHEMICAL WEAPONS (OPCW)

Established on 23 May 1997 and headquartered in The Hague, the Netherlands.

Principal organs:

- Conference of the States Parties
- Executive Council
- Technical Secretariat

Main tasks:

- destruction of chemical-weapon stockpiles and chemical-weapon production facilities—i.e., the demilitarization of chemistry
- provision for international cooperation among States Parties in the peaceful uses of chemistry

(IV) ESTABLISHMENT OF NUCLEAR-WEAPON-FREE ZONES

- A nuclear-weapon-free zone (NWFZ) is an area in which the States or regional groupings concerned voluntarily establish, through treaty or convention, the absence of nuclear weapons, and which is recognized as such by the United Nations General Assembly.
- Significance of establishing NWFZs:
 - - advances the global nuclear non-proliferation process
 - - raises regional and global levels of nuclear security
 - - promotes nuclear disarmament
 - - fosters the worldwide peaceful use of nuclear energy

(V) COMPREHENSIVE NUCLEAR-TEST-BAN TREATY (CTBT)

- - Opened for signature in 1996, the CTBT has not yet entered into force. (China, Egypt, Iran, Israel, the US and Russia, signed but not yet ratified; India, Pakistan and DPRK, not signed nor ratified. Thus, CTBT has not come into force.)
- Verification mechanism:
 - - International Monitoring System, on-site inspections, and the International Data Centre
- Purpose and objectives:
 - - to achieve a comprehensive ban on nuclear-weapon test explosions and any other nuclear explosions, thereby effectively promoting nuclear non-proliferation and nuclear disarmament and enhancing international peace and security

II. PROMOTING DISARMAMENT

Disarmament refers to the reduction of weapons, equipment, and military personnel.

UN disarmament bodies

Geneva-based Conference on Disarmament

(I) UNITED NATIONS DISARMAMENT MACHINERY

(1) The General Assembly and disarmament

- Special Sessions of the General Assembly Devoted to Disarmament
- First Committee of the General Assembly (Disarmament and International Security)

(2) The UN Secretariat and disarmament

- Office for Disarmament Affairs
- High Representative for Disarmament Affairs
- Advisory Board on Disarmament Matters to the Secretary-General
- UN Institute for Disarmament Research

(II) CONFERENCE ON DISARMAMENT (GENEVA)

- - Established in 1979; the sole multilateral negotiating forum on disarmament for the international community.
- Main items on the Conference's agenda:
 - - halting the nuclear arms race and achieving nuclear disarmament
 - - preventing nuclear war and all related matters
 - - preventing an arms race in outer space
 - - elaborating effective international agreements to assure non-nuclear-weapon States against the use or threat of use of nuclear weapons
 - - new types of weapons of mass destruction and new systems of weapons, including radiological weapons
 - - comprehensive disarmament programmes and transparency in armaments

III. PROMOTING ARMS CONTROL

- Arms control denotes the imposition of limits and restraints on the development, testing, deployment, and use of military equipment—especially weapons of mass destruction. It is normally accomplished through international agreements and international organizations.
- Key organizations and regimes:
 - - Nuclear Suppliers Group (NSG)
 - - Zangger Committee
 - - Australia Group
 - - Missile Technology Control Regime (MTCR)
 - - Wassenaar Arrangement

DISCUSSION QUESTIONS

1. What advantages do international organizations possess in the settlement of international disputes?
2. How should the role of sanctions in contemporary international relations be assessed?
3. What major innovations have characterized United Nations peacekeeping operations since the end of the Cold War?
4. What are the principal challenges confronting the international nuclear non-proliferation regime?